

The Board of Education of Brecksville-Broadview Heights City School District, Ohio, met in regular session on February 21, 2024, commencing at 6:00 p.m., at the Board of Education Center, 6638 Mill Road, Brecksville, Ohio, with the following members present:

The Treasurer advised the Board that the notice requirements of Section 121.22 of the Revised Code and the implementing rules adopted by the Board pursuant thereto were complied with for the meeting.

_____ moved the adoption of the following Resolution:

RESOLUTION NO. _____

A RESOLUTION ESTABLISHING A CAPITAL PROJECTS FUND (FUND 070) UNDER SECTION 5705.13(C) OF THE REVISED CODE, DIRECTING THE POSTING OF INVESTMENT INTEREST FROM THAT FUND TO THAT FUND AND AUTHORIZING AND DIRECTING THE TRANSFER OF MONEY TO THAT FUND FROM THE GENERAL FUND AND THE PERMANENT FUND.

WHEREAS, this Board of Education has determined that it is necessary and appropriate to accumulate resources for the acquisition, construction or improvement of fixed assets of the School District, specifically improving school district buildings and facilities at the School District's Main Campus by constructing, adding to, reconstructing, rehabilitating, remodeling, renovating, equipping and furnishing new and/or existing buildings and facilities and clearing, improving and equipping their sites (the Project); and

WHEREAS, to accumulate resources for the Project, this Board desires to establish a capital projects fund, to be known as the Capital Projects Fund, as authorized by Section 5705.13(C) of the Revised Code, for costs of the Project, to authorize and direct the posting of interest earned on money in that fund to that fund, and to authorize and direct the transfer of money to that fund from the General Fund and the Permanent Improvement Fund;

NOW, THEREFORE, BE IT RESOLVED by the Board of Education of Brecksville-Broadview Heights City School District, County of Cuyahoga, Ohio, that:

Section 1. Establishment of Capital Projects Fund. As authorized by Section 5705.13(C) of the Revised Code, the Board hereby establishes a capital projects fund (Uniform School Accounting System Fund No. 070), to be known as the Capital Projects Fund, for the purpose of accumulating resources for the acquisition, construction or improvement of fixed assets of the School District, specifically the Project. The source of money to be used to fund the Capital Projects Fund for the Project shall be lawfully available money in the General Fund and Permanent Improvement Fund as determined by the Board from time to time. The amount of money to be accumulated in the Capital Projects Fund for the foregoing purpose shall be (a maximum of) \$10,000,000, and the period of time over which that amount is to be accumulated is (a maximum of) 10 years, commencing on the date of this Resolution.

Section 2. Use of Capital Projects Fund; Return of Unused Balance. The Treasurer is hereby authorized and directed to establish the Capital Projects Fund in the books and records of the School District and take any other such actions as are necessary and appropriate to effectuate this Resolution. If the Board has not, by February 21, 2034 (being 10 years from the date of this Resolution), entered into contracts for the acquisition, construction or improvement of the capital projects specified in Section 1, any and all money in the Capital Projects Fund sourced from (i) the General Fund shall be returned to the General Fund and (ii) the Permanent Improvement Fund shall be returned to the Permanent Improvement Fund, as required by Section 5705.13(C) of the Revised Code, and the Treasurer is hereby authorized and directed make such transfer, at that time, without further action of this Board.

Section 3. Investment Earnings. Pursuant to Section 3315.01 of the Revised Code, this Board authorizes and directs that all interest and investment earnings on moneys in the Capital Projects Fund be retained in and post to that fund, to be used for the acquisition, construction or improvement of the capital projects specified in Section 1.

Section 4. Transfer of Funds to Capital Projects Fund. The Treasurer is hereby authorized and directed to transfer, pursuant to Section 5705.14(E) of the Revised Code, with respect to the period ending June 30, 2024, the amount of \$50,000 from the General Fund to the Capital Projects Fund for expenditures in accordance with this Resolution.

Section 5. Prior Acts Ratified and Confirmed. Any actions previously taken by School District officials or agents of this Board in furtherance of the matters set forth in this Resolution are hereby approved, ratified and confirmed.

Section 6. Compliance with Open Meeting Requirements. This Board finds and determines that all formal actions of this Board and of any of its committees concerning and relating to the adoption of this Resolution were taken, and that all deliberations of this Board and of any of its committees that resulted in those formal actions were held, in meetings open to the public in compliance with the law.

Section 7. Captions and Headings. The captions and headings in this Resolution are solely for convenience of reference and in no way define, limit or describe the scope or intent of any Sections, subsections, paragraphs, subparagraphs or clauses hereof.

Section 8. Effective Date. This Resolution shall be in full force and effect from and immediately upon its adoption.

_____ seconded the motion.

Upon roll call on the adoption of the foregoing Resolution, the vote was as follows:

TREASURER’S CERTIFICATION

The above is a true and correct extract from the minutes of the regular meeting of the Board of Education of Brecksville-Broadview Heights City School District, Ohio, held on February 21, 2024, commencing at 6:00 p.m., at the Board of Education Center, 6638 Mill Road, Brecksville, Ohio, showing the adoption of the Resolution set forth above.

Dated: February 21, 2024

Treasurer, Board of Education
Brecksville-Broadview Heights City School District, Ohio